

out tendering the rent, fines and costs, and Nesbitt (who as mortgagee, had three months longer to redeem under the statute), sent notice to the lessee that he would not redeem, but that if the lessee himself did *not* proceed, he should make the best bargain he could with the landlord, and then offered to take a new lease, to commence from the expiration of three months, with a proviso, that if any other of the parties interested should make a lodgment before that time, the agreement should be void, Lord Manners said that in all the previous cases the party had obtained the renewal by being in possession, or it was done behind the back, or by some contrivance in fraud of those who were interested in the old lease, and there was either a remnant of the old lease, or a tenant-right of renewal, on which the new lease could be ingrafted; but that here no part of Nesbitt's conduct showed a contrivance, nor was he in possession, and all that Nesbitt treated for was a new lease, giving, however, full opportunity to the lessee to dispose of his interest, or to renew, if he was enabled to do so. And under these circumstances his Lordship held that the lease granted to the mortgagee was not bound by any trust for the mortgagor (*i*).

* 10. **Trustee's lien for expenses of renewal.**—A [*184] trustee or executor who has renewed a lease has a lien upon the estate for the costs and expenses of the renewal, with interest (*a*); and where lands are taken under the new lease that were not comprised in the original lease, the Court will apportion the expenses according to the value of the respective lands (*b*). The trustee will also be allowed for money subsequently laid out in lasting improvements (*c*), though made during the suit for recovering the lease (*d*).

11. **Expenses incurred by tenant for life.**—In the case of a renewal by tenant for life, if he put in his own life, he of

(*i*) *Nesbitt v. Tredennick*, 1 B. & B. 29. *Kempton v. Packman*, cited 7 Ves. 176.

(*a*) *Holt v. Holt*, 1 Ch. Ca. 190; *Rawe v. Chichester*, Amb. 715, see 241. (*b*) *Giddings v. Giddings*, 3 Russ.

720; *Coppin v. Fernyhough*, 2 B. C. C. 291; *Lawrence v. Maggs*, 1 Eden, 453; (*c*) *Holt v. Holt*, 1 Ch. Ca. 190; *Lawrence v. Maggs*, 1 Eden, 453; (*d*) *Walley v. Walley*, 1 Vern. 184.

Pickering v. Vowles, 1 B. C. C. 197; *James v. Dean*. 11 Ves. 383;